

17. S-PR-0013944 In Re the Estate of O'Leary, Timothy Patrick

Appearance is required for hearing on amended petition.

The petition does not sufficiently state a legal basis for relief; it is recommended the petition be denied, as follows:

Prob.C. § 21700, cited in the caption and in the petition, does not establish a procedure to petition for relief. Instead, that section establishes standards for proving a promise to make a devise or other facts. Moreover, the verified petition does not appear to satisfy any provision of § 21700 to prove a promise to grant a life estate in the Auburn property to petitioner.

The petition does not show legal grounds for relief under Prob.C. § 850 and, if petitioner were to proceed under that section, is not supported by any notice or service. See Prob.C. § 851.

The petition does not show legal grounds for relief under Prob.C. § 17200 and, if petitioner were to proceed under that section, is not supported by any notice or service. See Prob.C. § 17203. If the court were to construe the petition as a § 17200 petition, it would be recommended the petition be denied under Prob.C. § 17202 as unnecessary for the protection of the interests of petitioner. Even if the court were to find that the trust § 6.02 terms were applicable to the Auburn property, § 6.02 grants trustee certain discretionary authority but does not give a beneficiary an enforceable right or estate in property. See trust §§ 6.02 and 13.03(r).

The petition does not show legal grounds for an action on a creditor claim against decedent's estate. No creditor claim has been rejected by a personal representative of the estate of settlor. Rejection of a creditor claim is a precondition to bringing suit against the estate. Prob.C. § 9351.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.2.1.

18. S-PR-0013949 In Re the Estate of Fagan, Merlin L. Jr.

Petition to administer estate is recommended for approval as prayed.

19. S-PR-0014061 In Re the Estate of Triolo, Kristin Deann

Missing notice of hearing and service of notice of hearing for amended spousal property petition. Amended petition requires complete re-noticing. C.R.C. 7.53.

Missing copy of the will attached to the petition. See ¶ 4c. ¶ 11 implies the will is a pourover will; if all assets pass to decedent's living trust, the will precludes spousal property relief as no assets pass from the estate to the surviving spouse.

Missing Attachment 7 (see ¶ 7), the facts supporting the requested relief.